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TEMPORARY LICENSE AGREEMENT

This Temporary License Agreement (the "**Agreement**") is made and entered into this 1st day of October, 2026 (the "**Effective Date**"), by and between COCONUT GROVE RETAIL XIII, LLC, a Delaware limited liability company ("**Licensor**"), and MF KONA, LLC, a Hawaii limited liability company, dba Foster's Kitchen, as Tenant ("**Licensee**").

1. **Premises**. In consideration of the mutual covenants, conditions and agreements in this Agreement, Licensor hereby grants Licensee a license to use and occupy the following described premises ("**Premises**"): **A location for a food truck to be designated by Licensor within the common area of the Center.** The Premises is contained within that certain shopping center commonly known as "**Coconut Grove Marketplace**" (the "**Project**"). The Premises shall be accepted by Licensee as-is, in the broadest sense of the term, and, without limiting the generality of the foregoing, Licensee acknowledges and agrees that Licensor does not make any representation or warranty about the condition of the Premises or that the Premises is fit for the "Permitted Use" (as hereinafter defined) and/or any other use.

2. **Term**. The term of this Agreement ("**Term**") shall begin on October 1, 2026 ("**Commencement Date**") and shall continue on a month-to-month basis thereafter until terminated by either party as provided below (no fixed "**Expiration Date**"). Either party may terminate this Agreement at will upon thirty (30) days' prior written notice to the other party. Licensor shall deliver possession of the Premises to Licensee for preparation, cleaning, and general setup on or before the Commencement Date. Upon the expiration or earlier termination of this Agreement, Licensee shall quit and surrender to Licensor the Premises in the same condition as delivered to Licensee on the Commencement Date, ordinary wear and tear excepted.

If Licensee should hold over after the expiration or earlier termination of the Term without Licensor's consent, such tenancy shall (without limitation of any of Licensor's rights or remedies therefore) be one at sufferance at a minimum monthly License Fee equal to two hundred percent (200%) of the monthly License Fee payable hereunder, prorated for the actual number of days Licensee continues to occupy the Premises after the expiration or earlier termination of the Term

3. **License Fee**. License fee ("**License Fee**") for the Term is five hundred dollars **($500.00**) per month, payable to Licensor on the first day of each month for the remainder of the Term, with the first month's License Fee due upon the mutual execution and delivery of this Agreement. No Percentage Rent is due under this Agreement. All charges payable under this Agreement shall be paid to Licensor by company check at the following address:
Coconut Grove Retail XIII, LLC
c/o Athena Property Management
75-5801 Alii Drive, Kailua-Kona, HI 96740
Attn: General Manager

4. **Personal Property**. Licensee shall furnish at its own expense all personal property to be used by Licensee on the Premises.

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5. **Permitted Use**. Licensee shall use the Premises only for the operation of a food truck for the retail sale of food and beverages and for no other purpose whatsoever (the "**Permitted Use**"). Licensee shall carry on no other business on said Premises without the prior written consent of Licensor. Licensee's business in the Premises shall be conducted under the trade name "Foster's Kitchen".

6. **Utilities**. Licensee agrees to pay prior to delinquency for all electric, power, water, gas, telephone, fire alarm monitoring fees, garbage, trash collection or other utilities supplied to the Premises or used by Licensee during the Term of this Agreement. If any such utilities are not separately metered or assessed, then in addition to Licensee's payments of separately metered charges, Licensee shall pay to Licensor the charges for such utilities, based upon Licensor's reasonable allocation of the estimated actual use thereof by Licensee.

7. **Transfer**. Licensee shall not license, sublet, assign or otherwise transfer the whole or any part of the Premises without first obtaining the prior written consent of Licensor, which consent may be withheld by Licensor in its sole and absolute discretion. Any purported sublet or other transfer by Licensee without Licensor's prior written consent shall be void and confer no rights whatsoever on any third party.

8. **Liens**. Licensee shall not permit any liens to be filed against the Premises on account of the furnishing of any labor, material or supplies, or for any other cause or reason. In the event liens are filed, then Licensee shall promptly cause the same to be released, bonded or satisfied in full within ten (10) days of the date of such filing. If a lien shall be so filed, and Licensee fails to remove such lien within such ten (10) day period, Licensor shall have, in addition to all other remedies provided herein and by law, the right, but not the obligation, to cause the same to be released by such means as it shall deem proper. All sums and expenses incurred by Licensor in connection therewith including reasonable attorney's fees shall be payable to Licensor by Licensee on demand.

9. **Indemnification**. "Licensor" for the purposes of this Section shall mean and include Licensor and Licensor's directors, officers, shareholders, agents and employees. To the fullest extent permitted by law, Licensee covenants with Licensor that Licensor shall not be liable for any damage or liability of any kind or for any injury to or death of persons or damage to property of Licensee or any other person occurring from and after the Commencement Date (or such earlier date if Licensee is given earlier access to the Premises) from any cause whatsoever related to the use, occupancy or enjoyment of the Premises by Licensee or any person thereon or holding under Licensee. Licensee shall pay for, defend (with an attorney reasonably acceptable to Licensor), indemnify, and save Licensor harmless against and from any real or alleged damage or injury and from all claims, judgments, liabilities, costs and expenses, including reasonable attorney's fees and costs, arising out of or connected with Licensee's use of the Premises and its facilities, or any repairs or Alterations which Licensee may make or cause to be made upon the Premises, any breach of this Agreement by Licensee and any loss or interruption of business or loss of rental income resulting from any of the foregoing; provided, however (and though Licensee shall in all cases accept any tender of defense of any action or proceeding in which Licensor is named or made a party and shall, notwithstanding any allegations of negligence or misconduct on the part of Licensor, defend Licensor as provided herein), Licensee shall not be liable for such damage or injury to the extent and in the proportion that the same is ultimately determined to be attributable

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to the negligence or misconduct of Licensor, and Licensor shall pay for, defend, indemnify, and save Licensee harmless against and from any and all claims, judgments, liabilities, costs and expenses, including attorney's fees and costs, resulting from any such damage or injury. The obligations to indemnify set forth in this Section shall include all reasonable attorneys' fees, litigation costs, investigation costs and court costs and all other costs, expenses and liabilities incurred by the indemnified party from the first notice that any claim or demand is to be made or may be made. All indemnity obligations under this Section shall survive the expiration or termination of this Agreement.

10. **Licensee's Insurance**. Licensee, at its sole cost and expense, commencing on the earlier of the Commencement Date, or the date Licensee is given earlier access to the Premises, and continuing during the Term, shall procure, pay for and keep in full force and effect the following types of insurance, in at least the amounts and in the forms specified below:

a) Commercial general liability insurance with coverage limits of not less than the combined single limit for bodily injury, personal injury, death and property damage liability per occurrence in the amount not less than Three Million Dollars ($3,000,000.00) or the limit carried by Licensee, whichever is greater, insuring against any and all liability of the insureds with respect to the Premises or arising out Alterations or the maintenance, use or occupancy of the Premises or related to the exercise of any rights of Licensee pursuant to this Agreement, subject to increases in amount as Licensor may reasonably require from time to time. All such liability insurance shall specifically insure the performance by Licensee of the indemnity agreement as to liability for injury to or death of persons and injury or damage to property set forth in Section 9. Coverage may be provided by any combination of primary and umbrella or excess policies provided that such umbrella or excess policies shall be no less broad than the underlying policies and shall have the same inception and expiration dates as the underlying coverage. Further, all such liability insurance shall include, but not be limited to, personal injury, blanket contractual, cross-liability and severability of interest clauses, products/completed operations, broad form property damage, independent contractors, owned, non-owned and hired vehicles (used in connection with Licensee's business operations) and, if alcoholic beverages are served, sold, consumed or obtained in the Premises, liquor law liability.

b) Worker's compensation coverage as required by law, including employer's liability coverage, with a limit of not less than One Million Dollars ($1,000,000.00) and, by endorsement, waiver by Licensee's insurer of any right of subrogation against Licensor and Licensor's property manager by reason of any payment pursuant to such coverage.

c) Commercial Automobile Liability Insurance covering owned, non-owned and hired automobiles, used in providing services under this agreement by Licensee in the minimum amount of $1,000,000 combined single limit for Bodily Injury and Property Damage.

All policies of insurance required of Licensee herein shall be issued by insurance companies with a general policy holder's rating of not less than "A" and a financial rating of not less than Class "VII", as rated in the most current available "Best's Key Rating Guide", and which are admitted and qualified to do business in the State of Hawaii. All such policies, except for the Workers' Compensation coverage, shall name Licensee as the insured and shall be for the mutual and joint benefit and protection of Licensor and Licensor's agents and mortgagee(s) or

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beneficiary(ies) as additional insureds. With respect to commercial general liability insurance and excess/umbrella liability insurance, Licensee shall name Licensor, Licensor's property manager, Licensor's lender and such other persons and entities as may from time to time be designated by Licensor in writing as additional insureds per a CG 2026 1185 additional insured endorsement with primary insurance wording, or an equivalent endorsement form acceptable to Licensor. Prior to Licensee, its agents or employees entering the Premises for any purpose Licensee shall furnish certificates of insurance evidencing the required insurance, as well as the required additional insured and waiver of subrogation endorsements (along with executed copies of the insurance policies if requested by Licensor). Thereafter, insurance certificates and endorsements shall be delivered to Licensor within thirty (30) days prior to the expiration of the term of each policy. All certificates of insurance delivered to Licensor must contain a provision that the company writing the policy will give to Licensor thirty (30) days' prior written notice of any cancellation or lapse or the effective date of any reduction in the amounts of insurance. All policies required of Licensee herein shall be endorsed to read that such policies are primary policies and any insurance carried by Licensor or Licensor's property manager shall be noncontributing with such policies.

11. **Licensor's Insurance**. Licensor shall carry commercial property insurance, including special form perils endorsement, insuring the building of which the Premises is a part, in an amount not less than the full replacement cost. In addition, Licensor shall carry commercial general liability insurance for the property of which the Premises is a part, in at least the same amounts required of Licensee.

12. **Hazardous Materials**. Licensee agrees not to maintain, keep, store or permit the maintenance or storage of any dangerous, flammable or hazardous material collectively, "**Hazardous Materials**") on the Premises (other than reasonable and customary amounts as permitted under existing fire and safety rules and regulations) and further agrees to comply with all federal, state and local laws and regulations (including fire and safety rules and regulations). Any such installations or modifications shall be the sole responsibility of the Licensor. The clean-up and disposal of any Hazardous Materials located or released onto or about the Premises or the Project by Licensee or its agents, contractors or employees shall be performed by Licensee at Licensee's sole cost and expense and shall be performed in accordance with all applicable laws, rules, regulations and ordinances, pursuant to a site assessment and removal/remediation plan prepared by a licensed and qualified geotechnical engineer and submitted to and approved in writing by Licensor prior to the commencement of any work.

13. **Casualty or Condemnation**. If all or any part of the Premises shall be damaged or destroyed by fire, earthquake or other casualty or condemned so as to render the Premises untenantable in Licensee's sole opinion, then this Agreement shall terminate, at the written option of Licensor or Licensee, from the date of such casualty or condemnation, and upon such notice Licensee shall at once surrender the Premises and all interest therein to the Licensor, and shall not be liable for any further payments of License Fee as of the date of such casualty or condemnation. If this Agreement is terminated pursuant to this Section, any portion of the License Fee applicable to the time period after the date of such casualty or condemnation shall be refunded to Licensee.

14. **Quiet Enjoyment**. Licensee, upon paying the License Fee required under this Agreement and performing all such other Licensee obligations set forth herein in a timely manner prior to an event of default, shall peaceably and quietly hold and enjoy the Premises during the full Term

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hereof; subject, however, to (a) the rights of the parties as set forth in this Agreement, (b) any deed of trust or ground or underlying leases to which this Agreement is subordinate, and (c) all matters of record to which this Agreement is subject.

15. **Governmental Approvals**. Prior to Licensee's opening for business from the Premises, in the event any governmental authorities require Licensee to (i) make modifications to the Premises required specifically due to Licensee's Permitted Use as set forth in Section 5 above, or (ii) obtain licenses or permits to occupy or modify the Premises (as opposed to licenses or permits specific to Licensee's business operations and not related to the Premises such as, by way of example only, a County or City business license), and the costs for such modifications or licenses and permits exceed a cumulative total of $2,000.00, then Licensee shall have the right to terminate this Agreement by giving written notice to Licensor within five (5) days following Licensee becoming aware of such governmental requirements. In the event Licensee so elects to terminate this Agreement, and provided Licensee has not operated from the Premises, Licensor shall refund to Licensee all License Fee and deposits (if any) paid to Licensor. Licensor may, however, elect to pay all costs above the amount of $2,000.00, in which event Licensee's notice of termination shall be void, provided Licensor notifies Licensee in writing of such election no later than three (3) business days following Licensor's receipt of Licensee's notice of termination, and Licensee shall be required to pay all such costs up to $2,000.00 and this Agreement shall continue in full force and effect.

16. **Compliance with Law**. Licensee, at Licensee's sole expense, shall comply with all applicable local, state and federal statutes, regulations, rules, codes, including building codes, ordinances and other requirements of governmental authorities now or hereafter in effect (collectively, the "**Applicable Laws**") pertaining to the use or condition of the Premises and the conduct of Licensee's business. Licensee shall give to Licensor immediate written notice upon Licensee's becoming aware that the use or condition of the Premises is in violation of any Applicable Laws.

17. **Access to Premises**. Licensor shall have access to the Premises at all reasonable times during Licensee's normal business hours and upon not less than 24 hours prior notice (except in the event of emergency, in which event no notice shall be required), to enable Licensor (i) to examine the Premises; (ii) to perform any obligation or exercise any right or remedy of Licensor under this Agreement; (iii) to make repairs, alterations, improvements or additions to the Premises as Licensor deems necessary or desirable; (iv) to cure any Licensee default (after Licensor has provided Licensee notice and an opportunity to cure such default); (v) to perform work necessary to comply with laws, ordinances, rules or regulations of any public authority or of any insurance underwriter; (vi) to show the Premises to prospective tenants, mortgagees and purchasers; or to measure and inspect the Premises for plan preparation purposes in connection with the upcoming remodel.

18. **Default**. In the event Licensee shall be in default in the payment of any installment of License Fee herein reserved more than five (5) days following written notice from Licensor , or in the event Licensee shall be default in the performance of any other of the terms, covenants, conditions or provisions herein contained binding upon Licensee after Licensor has given Licensee fifteen (15) days prior written notice of such non-performance, Licensor shall have the right (in addition to all other rights and remedies provided by law or in equity) to terminate this Agreement,

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to re-enter and take possession of the Premises, peaceably or by force, and to remove any property therein, without liability for damage to, and without obligation to store, such property. Licensee shall pay all costs, expenses and reasonable attorneys' fees that may be incurred or paid by Licensor and its agents in successfully enforcing the covenants and agreements contained in this Agreement. Licensee shall also pay all costs and expenses on account of any physical damage caused by, or in connection with, Licensee's breach or default under this Agreement or its vacation of the Premises. In the event Licensor shall be default in the performance of any of the terms, covenants, conditions or provisions herein contained binding upon Licensor after Licensee has given Licensor fifteen (15) days prior written notice of such non-performance, (or if more than fifteen (15) days shall be required because of the nature of the default, if Licensor shall fail to diligently proceed to commence to cure the default after written notice), then Licensor shall be liable to Licensee for all damages sustained by Licensee as a direct result of Licensor's breach and Licensee shall not be entitled to terminate this Agreement as a result thereof.

19. **Exculpation**. Notwithstanding the foregoing or anything contained in this Agreement to the contrary, it is expressly understood and agreed that any judgment against Licensor resulting from any default or other claim under this Agreement shall be satisfied only out of the net rents, issues, profits and other income actually received from the operation of the Project, and Licensee shall have no claim against Licensor (as Licensor is defined in Section 9 or any of Licensor's personal assets for satisfaction of any judgment with respect to this Agreement.

20. **Notices**. Any notice required or permitted under this Agreement shall be in writing and, except as specifically provided otherwise herein, shall be deemed to have been duly given and delivered (a) one (1) business day after the date on which the same has been delivered prepaid to a national courier service guaranteeing next day service, or (b) three (3) days after deposit in the United States mail, registered or certified, return receipt requested, postage prepaid, in each case addressed to the party to whom such notice is given at the address set forth below:

To Licensee: MF Kona, LLC, dba Foster's Kitchen
Attn.: Jeffrey Foster
Phone: (808) 960 6318
P.O. Box 390913
Keauhou, HI 96739
Email: jeff@fosterskitchen.com

To Licensor:
Coconut Grove Retail XIII, LLC
c/o JH Real Estate Partners, Inc.
Attn: Stathi G. Marcopulos, COO/
General Counsel
520 Newport Center Drive, Suite 780
Newport Beach, CA 92660
Email: smarcopulos@jhrep.com

With copy to:
Athena Property Management Re:
Coconut Grove Marketplace

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730 El Camino Way, Suite 200
Tustin, CA 92780
Attn: Mike Garner
Email: mgarner@athena-pm.com

21. **Attorneys' Fees**. If either Licensor or Licensee institutes any action or proceeding against the other to enforce any provision of this Agreement, the non-prevailing party shall reimburse the prevailing party for all reasonable costs and expenses incurred by the prevailing party in the performance of this Agreement, including court costs, expenses and reasonable attorneys' fees.

22. **Brokerage Commissions.** Each of the parties hereto represents and warrants to the other that it has not dealt with any broker or finder in connection with this Agreement. Licensor and Licensee agree to indemnify and defend (with counsel reasonably acceptable to the other) the other party and to hold the other party harmless from and against any liability for claims for commissions or fees by any other broker or finder based on the acts of the indemnifying party.

23. **Entire Agreement**. This Agreement contains the entire agreement of the parties, all prior understanding and agreements are being merged herein. There are no oral or written agreements or representations between Licensor and Licensee except as expressly set forth in this Agreement. No modifications of this Agreement will be binding upon Licensor or Licensee unless made in writing and signed by each party. The terms, covenants and conditions contained herein shall inure to the benefit of, and be binding upon, Licensor and Licensee, and their respective heirs, successors and assigns.

24. **Severability**. If any term or provision of this Agreement or the application thereof to any person or circumstance shall, to any extent, be invalid or unenforceable, the remainder of this Agreement or the application of such term or provision to persons or circumstances, other than those as to which it is held invalid or unenforceable, shall not be affected thereby, and each term and provision of this Agreement shall be valid and be enforced to the fullest extent permitted by law.

25. **Governing Law**. This Agreement shall be construed in accordance with the laws of the state in which the Premises is located. Licensor and Licensee acknowledge and agree that this Agreement does not constitute a lease or other conveyance of real property interest and, therefore, in no event shall Licensee be considered a "tenant" pursuant to Applicable Laws.

26. **Force Majeure.** Neither the Licensor nor the Licensee shall be liable for failure to perform any obligation under this Agreement in the event it is prevented from so performing by strike, lockout, breakdown, accident, act of terrorism, order or regulation of or by any governmental authority or failure to supply or inability by the exercise of reasonable diligence to obtain supplies, parts or employees necessary to furnish such services or because of war or other emergency, except the obligations imposed with regard to payment of License Fee and any other charges to be paid by Licensee pursuant to this License Fee. If the act of any governmental authority having jurisdiction over Licensee's use of the Premises prohibits Licensee's business operations in the Premises and Licensee is prohibited from operating its business in the Premises as contemplated herein because of the effects of Covid-19 or the "coronavirus," then Licensee shall be entitled to terminate this License at any time by giving termination date specified in Licensee's termination

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notice, this License shall terminate. License Fee shall be prorated based on the number of days from the Commencement Date through the termination date, and either Licensor shall refund to Licensee any prepaid License Fee and Utilities, or Licensee shall pay Licensor any License Fee owed, based on such prorated License Fee, within thirty (30) days following the effective date of such termination.

27. **Counterparts and Electronic Signatures.** This License may be executed in any number of counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same instrument. A signed copy of this License transmitted by facsimile, email or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original executed copy of this License for all purposes.

28. **Time of the Essence**. Time is of the essence with respect to the performance of each, every, and all of the terms, conditions, promises and provisions of this Agreement.

[remainder of page left blank intentionally - signature page follows]

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IN WITNESS WHEREOF, the parties hereto have executed this Agreement the day and year first above written.

LICENSOR:

DocuSigned by:
By: Stathi G. Marcopulos
145EE6F7E8B2409...
Stathi Narcopulous
COO, JH Real Estate Parteners

On behalf of:

COCONUT GROVE RETAIL XIII, LLC,
a Delaware limited liability company

LICENSEE:

DocuSigned by:
By:
6FE47EBC86F54B8...
Jeff Foster

MF KONA, LLC,
a Hawaii limited liability company, dba Foster's Kitchen

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Exhibit “A” – Premises

Premises